

Court No. - 2

Case :- WRIT - C No. - 11515 of 2018

Petitioner :- Paschimanchal Electricity Distribution Division E.D.D. Iind
And Another

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Usha Kiran

Hon'ble Ram Surat Ram (Maurya),J.

Issue notice to respondent-2.

Counsel for the petitioner submits that for non-payment of bill, temporary disconnection has been made. Permanent Lok Adalat has not recorded any finding as to whether the previous bills were paid, or not. Under Clause 6.5 of Electricity Supply Code 2005, without depositing the amount, the claim petition was not maintainable, therefore, Permanent Lok Adalat ought not to have exercised its jurisdiction, so long as the amount of bill was not deposited, but without ensuring amount of bill being deposited, Permanent Lok Adalat has directed for restoring the connection, which is illegal.

The matter requires consideration.

Till the next date of listing, operation of the order dated 24.1.2018, shall remain stayed.

Order Date :- 29.3.2018

Jaideep/-